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Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1050**	**5674**	**6709**
Section 2	**1749**	**9552**	**11285**
Section 3	**700**	**3862**	**4555**
Total	**3499**	**19088**	**22549**

Answer-to-Question-_1_

Bicameralism and presentment requirements are met (Art.I-7).

(1)

Standing: California expects a direct injury (loss of federal money/resources) traceable to this statute and redressable by a court (lifting the law), so has standing (*Levitt*). There could be a ripeness problem: California won't be harmed until there had been a fire and the Secretary found the state's regulations insufficient. However, because California is not automatically in compliance, it has to expend funds to assess its compliance and possibly fund new state activites, which is sufficient injury for standing. Private citizens probably don't have standing yet because the expectation that a fire will hit any particular property is too tenuous.

The automatic compliance exception doesn't violate *Shelby County* because it is closely linked to "current needs."

Federalism: First, fire fighting is within the general police power to protect health and safety that only the states, not the federal government, possess (*Miln; Raich*, Thomas dissent). Congress needs an enumerated power to justify its spending on fire fighting at all (Madison, Veto Message), but there's a strong argument that fires "substantially affect" interstate commerce (they destroy crops (*Wickard*) and don't respect state lines)(*Jones & Laughlin Steel*). Fires are not inherently economic (*Lopez*, *Morrison*) but fighting them to protect property/crops is (*Raich* "broader class of activity.") Even Hamilton might accept Congress's efforts in this context because the focus is on disasters with multistate/national impact.

Congress's power to make "Regulations respecting the Territory" of the US (Art.IV-3.2) could allow them to block the

USFS from fighting fires on federal land in non-compliant states. However the prohibition on "Prejudic[ing] any Claims...of any particular state" all federal land to be treated the same way across states. This is an argument I would need to research further.

However, Congress's meansare not permissible if they improperly commandeer or coerce state authority (*Printz*).

The $600m loss in FMAG money is .3% of California's budget, lower than the percentage permitted in *South Dakota*. 100% of USFS spending is still only 1% of the state budget. So as a matter of amount, this is likely not coercive. We could argue the condition is ambiguous ("substantially mitigate" is imprecise) but if its an intelligible principle that probably fails.

Roberts' *NFIB* opinion left unclear whether reaching old programs and funds (ironically, "pre-existing conditions") was dispositive in finding the condition unconstitutional, and also unclear whether that holding had 5 votes to make it binding. If this factor is dispositive and binding, this would be the state's strongest argument: FMAG and USFS are existing programs.

Delegation: Congress delegated to the Secretary (in the executive branch) a particular tool(authority to determine if a state's regulations "substantially mitigate the risk") with a clear goal of encouraging states to prevent fires, likely satisfying the intelligible principle test (*Mistretta*). Scalia would argue the IP test is an unmanageable one, but likely allow this delegaton because it is one of carrying out the law, with a middling degree of discretion, to the executive branch. Trying to argue otherwise will likely fail.

Judicial Review: There is law to apply (*Luther*): whether Congress's standard is intelligible, and whether the SOI's

application of the standard to a state is reasonable. This provides a theoretical check on federal power, however, given the *South Dakota* Court was not willing to protect states when federal law seemingly infringed on rights granted by the 21st Amendment, it's not clear the court would step in here, where there is no explicit constitutional protection.

Executive: If the President declined to enforce this as unconstituional (Dellinger Memo), he'd do so in direct contradiction to a Congressional instruction (*Richardson*), putting him in Jackson's "lowest ebb" (*Youngstown*). But massive fires arguably threaten national security; the Commander in Chief might call up the militia in place of the civil USFS. In the extreme, a President who wants to "watch it burn" is "unable to discharge" his CIC duty to protect the country, and VPOTUS and the principle officers should act accordingly (*XXV*, see also Game of Thrones: Mad King Aerys).

Humanity: the Constitution here doesn't require the abandonment of humanity (Clairborne, Savannah Fire Debate).

(2)

Standing and Justiciability: Individuals would be harmed here, not the state; however we need to know if Congress intended the Anti-Injunction Act to apply (*NFIB*). Congress chose these states because of near certainty of a fire, so ripeness is likely not an issue. Taxes are generally justiciable (*Hylton*, *Windsor*) but the size of the tax may be considered a political judgement (*Veazie Bank*).

This bill for raising revenue is unconstitutional unless it properly originated in the House (Art. I-7.1).

Direct Tax: this is a head tax ("on all persons in the state") which is a direct tax (*Hylton, NFIB*) but isn't apportioned (Art.I-9.4): first, the rate in 45 states is $0/person. Second, among the designated states the rate per person will vary because it is tied to the number of acres burned in that state. However, Roberts might suggest that a tax that is conditioned (on state, acres burned) isn't a head tax (*NFIB*) and so not a direct tax. But *Pollock* eliminated the middle category, so if not direct it must be a DIE (which seems a poor fit) and be uniform, which it's not: non-designated states with fires pay $0/burnt acre. We have a strong argument this is an unconstitutional unapportioned direct tax, but I join Scalia's plea for more information.

Penalty: Congress may tax activity it couldn't regulate directly (*License Tax*), but can't impose a penalty, regardless of what it's called (*NFIB*). This tax is seemingly paid to the IRS, is expected to be capped at $2,000 such that it raises revenue not destroy an activity, and does not require scienter (*Bailey*). This is likely not a penalty, unless there comes a year when so many acres are destroyed that the tax per person is effectively unpayable.

Designated States: This tax arguably violates the Equal Sovereign principle (*Shelby*). The formula for choosing states to designate does seem tied to "current needs" (looking at last 15 years) but there needs to be a mechanism for updating that formula regularly. We could argue drawing the line at five states (why not 6?) is arbitrary. But I'm not sure sure an individual citizen can sue for Equal Sovereign violations,and further, *Shelby* left uncertain whether the Principle applies outside Enforcement jurisprudence.

----------ANSWER-1-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-2-BELOW----------

Answer-to-Question-_2_

A

Proposal 1

Congressional Power: Congress has the power to regulate the criminal justice system, regardless of the large number of links in the chain between any enumerated power and that system (*Comstock*). If part of that responsibility is protecting the public from sexually violent prisoners, it should also reasonably include protecting the rights of the accused. So broadly speaking Congress can create and regulate a PD system, as long as it respects the separate powers of the judiciary and executive branches as well as the Bill of Rights.

Branch: The IDC is not deciding cases (Art.III judicial power; *Mistretta*, Scalia dissenting). Defending accused criminals must closely resembles an executive power (the inverse of prosecution (*Cox*), and "taking care" that the rights of the accused embodied in the Bill of Rights are defended), so Scalia would say this is a "JV Executive." On the other hand, having defenders is recognized as being necessary to the functioning of the courts and the adversarial system, similar to the independent counsel in *Morrison*, so there is a reasonable argument for placing the commission in the judiciary. Regardless, the *Mistretta* majority would only ask if Congress provided an intelligible principle for creating the commission, and the report gives one: the goal is to provide better criminal defense

by removing conflicts of interest, and the tool is establishing necessary policies and rules to carry out the federal defense system. This is broader than the Sentencing Commission's tools, but not clearly more than is given to other independent agencies like the FEC (*Buckley*). And Congress is not usurping power for itself, although it is usurping power from the individual federal courts and to this executive-esque body.

Commissioners Appointments: The Commissioners are probably Officers of the United States (Art.II-2.2): they set policies independent of any oversight and so probably exercise "significant authority,"(although the *Buckley* standard isn't precise) and they are not temporary but rather have a longer term than House members (*Germaine*). Next, they are probably principal rather than inferior officers: They are not removable by a superior officer (*Edmond*, more below) and again are not temporary (*Morrison*). The *Morrison* majority would argue that they are inferior officers because they operate within the limited jurisdiction of the federal defender program, even though within that jurisdiction they exercise very broad powers (compare "any policies" to "full power and independent authority" in the EIGA). But I think *Edmond* controls here, because the Commissioners' work is not "directed and supervised...by others who were appointed by presidential nomination with the advice and consent of the Senate," such that they are not inferior (and therefore are principal) officers.

As principal officers, they must be appointed by the President with the advice and consent of the Senate (*Buckley*). Interbranch appointments are permissible so long as congruent (*Morrison*), which this is since the power exercised is executive-esque. Requiring POTUS to choose from the CJ's slate likely violates two constitutional principles: first, it takes power from the executive and the Senate and gives it to the judiciary by modifying Art.II-2.2 requirements (under *Buckley*, forbidden

and not even within the scope of Necessary and Proper), and it's an advisory opinion from the Chief Justice, which by practice is outside the scope of Art. III powers and bad policy (Correspondance of the Justices). However, the limits on sitting judges and party members are likely permissible, as the Court did not specifically object to similar restrictions in *Mistretta*.

PD Office Heads Appointments: PDOHs are likely inferior officers. They are "supervised, monitored, and compensated" by principle officers (*Edmond*), their jurisdiction is limited geographically, and their duties are limited to running their office (*Morrison*). As inferior officers, Congress can vest their appointment in the President alone, a Head of Department, or the Courts (Art.II-2.2). This proposal strongly suggests the Commissioners are not a court. As for department heads, in *Lucia*, even Breyer would have been alright with Commissioners (rather than staff) appointing inferior officers (the ALJs). But Art.II-2.1 describes "principal Officer[s] in each of the executive Departments" (understood to exclude judiciary branch judges, Correspondance of the Justices) - that may be the definition of "Head of Department" or only a subset of such Heads. If the latter, this is fine; otherwise it is unconstitutional because the Commissioners are, at most, heads of a judiciary Department.

PDs: PDs are analogous to AUSAs, who I believe are officers (*Cox*): they hold analogous (though inverse) power in a similar kind of jurisdiction, although arguably have less discretion (they can't offer plea bargains or decide not to prosecute). The *Edmond* test doesn't seem to allow for multiple layers of inferior officers to appoint and direct each other. If PDs are officers letting PDOHs hire them alone could be an Art.II-2.2 violation.

Commissioners' Removal: Term-limiting these Officers by statute is constitutionally sound (*Myers*), but barring their removal by the President may not be. The placement of this

seemingly-executive body in the judiciary branch twists removal doctrine: it's not clear to what extent the President's obligation to Take Care (Madison, Decision of 1789) extends to bodies formally outside his branch. Arguably that responsibility mirrors his appointment authority (*Myers*, Bland 1789) no matter what branch the appointment is made in.

If the Commissioners are subject to the same removal rules as Officers in the executive branch, then they look most like the heads of an independent agency. Under *Humphrey's Executor* Congress could limit the President's removal power of these officers to "for cause" rather than "at will," but this proposal allows removal only by impeachment, a view (Smith 1789) which has been rebutted by 200 years of practice. One could argue that criminal defense, like prosecution, sits at the heart of Executive power (*Cox*) such that the President's ability to carry out a purely executive function is infringed if he cannot remove these Commissioners at will (*Myers* interpreted in *Humphrey's Executor*). But that argument lacks the weight of two centuries of practice, as public defense has never before been under the President's control.

The proposal doesn't explicitly provide for removal of PDOHs; if they are inferior officers and their principal officers (Commissioners) are removable only for cause, they cannot also be insulated from removal at will (*PCAOB*).

Appropriations: Art.I-9.7 requires money to only be drawn from the treasury "in Consequence of Appropriations made by Law," meaning a statute must be passed by both parties and presented to the President (Art.I-7). Congress cannot delegate that power (*Clinton*). It would probably be acceptable for the Commission to do something along the lines of what the President does: submit a budget for Congressional consideration and make requests for appropriations. But it cannot "submit appropriations" of money.

Proposal 2

Appointments: If Commissioners were inferior officers (which they likely aren't, above), then Congress could vest their appointment in "the Courts of Law" (Art.II-2.2). I'm not certain the voting arrangement among the courts within each circuit counts as such a vesting (it's not vested in a Court, nor are all the courts equally vested with appointment of all the Commissioners), but it seems like it could. But given that Commissioners are likely principal officers, this point is probably moot - this proposal fails because they are not appointed by the President with the Senate's advice and consent. And if they are inferior officers, we run into *Edmond*: the PDOHs, as inferior officers themselves, need to be appointed and controlled by principal officers.

Removal: Federal judges serve lifetime appointments unless impeached, providing "double insulation" for PDOHs if PDOHs are removable only for cause (*PCAOB*). But if the Commission is not a court, arguably these judges could be removed from the Commission for cause (like heads of independent agencies) without violating their life tenure on the courts where they serve as judges.

Court: Another way to view this proposal is Congress exercising its power to create a new inferior court, which Congress may establish (Art.III-1.1). But such a court is vested only with "judicial Power" to hear cases (Art. III-2) and that is not what this body does. If it were a Court, it could be safely vested with the power to appoint the PDOHs as inferior officers; but the Commissioners cum judges themselves would almost certainly have to be appointed by the President with the Senate (I know of no federal court where judges are inferior officers; ALJs are not the same as judges in that respect). Another problem

is that judges appointed to federal courts hold life tenure, such that the 3-year term is a violation of Art.III-1.2, although the removal only by impeachment is now permissible (indeed, required).

Principle: Because Commissioners are tied to geography (and the courts within that geography), this arrangement might not help Congress's goal of removing PDs from local conflicts of interest and prejudice (*Cox*). This could be an unconstitutional delegation because the tool doesn't match the goal, destroying any intelligible principle.

B

Principle: I'd clarify the intelligible principle behind the commission: to provide for the objective and independent defense of the civil rights of individuals standing trial for criminal charges in federal court, by hiring, supervising, and compensating public defenders.

Placement: I'd follow Scalia's *Mistretta* principle by creating an independent agency (making Commissioners Heads of Department, *Lucia*) in the Executive branch (PDs should "take care" of the constitutional rights of defendants, not serve the court), avoiding conflicts of interest with DOJ.

Appointment: The 7 Commissioners would be principle officers appointed by the President with the advice and consent of the Senate, with a 3 year tenure staggered (like the Senate) to avoid a complete turnover within one Presidential term. I'd limit it to 3 federal judges; 3 members of one party; 3 current or former DOJ employees; and require 1-3 current or former PDs such that many perspectives are represented but none holds a majority. (I'd need to check that the affirmative requirement - rather than

limit - to have one or more PDs is permissible, it doesn't arise in *Mistretta*.)

PDOHs would be inferior officers appointed by the Commissioners (their duties and jurisdiction are limited to their office) and term limited to 2 years.

PDs would be employees, not Officers - there duty is to the defendent, unlike AUSAs whose client is the government. They can therefore be hired and fired by PDOHs like any other employee.

Removal: I would avoid *PCAOB's* double layer prohibition while taking advtange of *Humphrey's Executor* by making PDOHs removable at will by the Commission, but making Commissioners removable by the President only for cause, or by impeachment by Congress.

----------ANSWER-2-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-3-BELOW----------

Answer-to-Question-_3_

First, I uphold *McCulloch*: Congress needs a legitimate end within its enumerated powers, but may use any "means appropriate," meaning plainly adapted to the end, excluding means inconsistent with the letter and spirit of the Constitution. The challenge is that the "spirit" itself contains contradictions. The Framers set the Court a tall task to uphold multiple lofty principles imperfectly condensed into text by fallible humans. Congress's powers are enumerated but enormous; States' powers are

broad but subordinated. That's ok. The value of constitutional democracy arises from its willingness to engage the inherent tensions in trying to obey all the better angels of its nature.

The Court balances these contradictions in its Enforcement doctrine, which derives from the same *McCulloch* principle (*Katzenbach* at 3). Unlike the hodgepodge Commerce doctrine, Enforcement doctrine has two fairly straightforward rules: legislation must be "congruent and proportional" to a judicially-identified violation (*Boerne*), and "current burdens" must be justified by "current needs" (*Shelby County*). Applying these standards to judicially-recognized threats to the supremacy of federal law in an area of enumerated power would solve two problems of Commerce doctrine: its focus on the nature of an activity rather than its effects, and its permission of large power grabs based on Congress's anxiety about things not yet in evidence.

Gibbons: Uphold, because intercourse of people is well within the core power.

Darby: Uphold, but limit the reasoning: Congress may regulate intrastate activity if and only if the actual regulation is congruent and proportional to an interstate commerce goal. *Darby* survives because the factories in question were shipping lumber interstate, so cheating labor standards would affect that market.

Wickard: Uphold, but highly dependent on underlying facts demonstrating "current needs." The Congressional record needs to strongly support the claim that growing wheat for home use impacted the interstate wheat market. And the statute could fail "congruence" - it seems more sensible for Filburn to be fined upon selling more than his quota.

Heart of Atlanta: Uphold, because of the direct impact on

people traveling in interstate commerce. Ollie's BBQ would be overturned because serving meat that once traveled interstate isn't sufficient. I'd rely on modern 14th Amendment doctrine forbidding states to support such discrimination.

Lopez: Uphold, but not the "economic activity" requirement pulled from thin air. Instead, the question is whether there was any threat to a regulation of interstate commerce that needed to be addressed the GFSZA. In 1995, four years before Columbine, there probably wasn't. But the "current needs" test would let Congress today reassess the reality of gun violence impacting kids' ability to safely receive the education that is the cornerstone of our national economy. One wrinkle: Lopez was first arrested by his state under a substantially identical rule to the GFSZA. In such states, there probably is no "need" for the federal government to step in, and so the GFSZA could only be constitutional as applied in states that chose not to regulate this activity. If a state statute actively contradicted the federal GFSZA (*Gibbons*) Congress would have a very high burden to show that it's rule was a congruent and proportional remediation of an actual current threat to interstate commerce.

Raich: Overturn! Criminally sentencing sick people for possessing medication with a state license is not proportional or congruent to interstate pot concerns, and is an extraordinary encroachment on California's police power to protect the health of its residents. The federal government doesn't need to protect against black market sales, because the State was doing so.

Comstock: Uphold in principle with a very skeptical eye to the details of the statute. The strenght-not-number of links logic is fine. But former prisoners should only be civilly committed if such an extreme move is truly proportional to the risk they pose to the public - having child porn doesn't make that cut.

SAMTA: Overturn, but overrule *NLC* differently. A federal intrusion into expenditure of state funds is a big move, and must be justified by a proportional threat to the core interstate commerce or another enumerated power. I wish I could find one, but can't.

Printz: Uphold, because requiring state officers to enforce federal law is out of proportion; requesting state help, perhaps offering incentives, would be sufficient.